

3.	25CV2341	GUY SEATON VS. ROBINSON AUTOMOTIVE INC. ET AL
MOTION FOR SET ASIDE		

The Notice does not comply with Local Rules 7.10.05. Repeated violations will be grounds for sanctions pursuant to Local Rule 7.12.13.

Defendants, Robinson's Automatic Inc. and Martin Robinson ("Defendants"), bring this Motion to Set Aside Default under the provisions of Code of Civil Procedure § 473(b) on the following grounds:

1. Defendant has established excusable neglect based on a reasonable misunderstanding of the distinction between small claims and limited civil procedures, combined with Defendant's diligent appearance at the case management hearing and prompt action upon learning of the default;
2. The default entry is procedurally defective and violates the mandatory requirements of California Code of Civil Procedure § 587;
3. Defendant has established a meritorious defense based on the signed agreement's impound and lien provisions; and
4. The equities strongly favor setting aside the default and permitting resolution on the merits.

[B]ecause the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default (*Waite v. Southern Pacific Co.* (1923) 192 Cal. 467, 470-471 [221 P. 204]; *Carli v. Superior Court* (1984) 152 Cal.App.3d 1095, 1099 [199 Cal.Rptr. 583] [in the context of deemed admissions § 473 should be applied liberally "so cases can be tried on the merits"]; *Flores v. Board of Supervisors*, supra, 13 Cal.App.3d at p. 483.)... A motion seeking such relief lies within the sound discretion of the trial court, and the trial court's decision will not be overturned absent an abuse of discretion. (*Weitz v. Yankosky* (1966) 63 Cal.2d 849, 854 [48 Cal.Rptr. 620, 409 P.2d 700]; *Martin v. Cook* (1977) 68 Cal.App.3d 799, 807 [137 Cal.Rptr. 434].) *Elston v. City of Turlock*, 38 Cal. 3d 227, 233, 695 P.2d 713 (1985).

Code of Civil Procedure § 473(b) provides, in part:

(b) The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect.

Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

July 31, 2026
Dept. 9
Civil Tentative Rulings

Plaintiff's Notice of Motion identifies the proposed Answer to Complaint is lodged herewith; however, the proposed Answer is not included in the Court's file. The Court is inclined to grant Plaintiff's motion upon receipt of the proposed Answer.

TENTATIVE RULING #3:

APPEARANCES REQUIRED FRIDAY, JULY 31, 2026, AT 8:30 AM IN DEPARTMENT NINE.

IF A PARTY OR PARTIES WISH TO APPEAR BY ZOOM, PLEASE CONTACT THE COURT AT (530) 621-5867 AND MEETING INFORMATION WILL BE PROVIDED.